

**IN THE COURT OF APPEALS OF
THE STATE OF WASHINGTON
DIVISION ONE**

ZACKARIAH BENNETT,

No. 87007-6-I

Appellant,

v.

**MOTION FOR
RECONSIDERATION**

MELVINA MANNING,

Respondent.

I. EXECUTIVE SUMMARY

This motion presents three questions this Court cannot answer without granting reconsideration:

1. When Exhibit A—filed in the trial court on November 16, 2023 and admitted to this record on December 8, 2025—documents phone calls in 2010-2011, a DOC-approved in-person visit on June 12, 2011 (filmed by Respondent Manning herself, in which T.B. identifies a toy as the "daddy one"), engagement in T.B.'s mental health treatment in 2012, and Read-to-Me-Daddy recordings and Angel Tree gifts sent during Appellant's 2012-2015 incarceration (acknowledged by Respondent but with direct contact refused), can this Court's finding that

Appellant made "no attempt to contact T.B." from 2008 to 2019 survive as anything other than manifest factual error?

2. When Respondent's counsel received video and photographic evidence of the June 12, 2011 father-son visit on February 1, 2024, possessed Exhibit A since it was filed in November 2023, and knew her client's September 19, 2023 declaration stating "no attempt to contact" was false—yet took no remedial measures and continued relying on that declaration to obtain summary judgment five months later—what is this Court's obligation under RPC 3.3?

3. When counsel told the Supreme Court on June 21, 2024 that civil issues were "NOT RELEVANT" to the DVPO, then told the Superior Court seven days later that those same issues were "already adjudicated" in the DVPO—and this Court adopted the second position without addressing the first—has collateral estoppel been applied, or manufactured?

Each question is documented in the record. Each is independently dispositive. Each demands response.

II. INTRODUCTION

Eighteen years ago, Appellant Zackariah Bennett signed what he was told was a temporary custody agreement for his infant son, Timothy E. Bennett II. The agreement, dated March 5, 2008, explicitly stated custody would remain with the child's grandmother "until such time we either move to WA or decide to TAKE CUSTODY BACK." Those words are on the document—not paraphrased, not interpreted, but quoted verbatim from Exhibit D.

Within months, that temporary arrangement became permanent through procedural manipulation. The grandmother, Melvina Manning, filed an ex parte order and contacted Appellant's Colorado probation officer. The probation officer denied Appellant's travel permit. Unable to travel to Washington, Appellant could not attend the show cause hearing. He was incarcerated on August 10, 2008. Two days later—while Appellant sat in a Colorado jail, unable to defend himself—Manning filed for default judgment. The default was granted.

The December 5, 2008 Findings of Fact contain an impossible contradiction. On page 3, the order states that Appellant "ABANDONED" his child as of March 5, 2008—the very day he signed the temporary custody agreement. Yet on page 5, the same order requests a restraining order because "BOTH PARENTS THREATEN TO REMOVE CHILD from State of Washington." A parent cannot simultaneously abandon a child and threaten to remove that child. The "abandonment" finding was false when made.

In 2013, a Snohomish County Superior Court entered an Agreement and Order for Communication and Contact in connection with T.B.'s adoption. That order, prepared by Manning's own attorney, found that communication between Appellant and T.B. was "in the best interest of the child adoptee." The agreement provided for up to eight visits per year and quarterly progress reports. Manning agreed to these terms. A judge approved them. Yet Manning now claims Appellant made "no attempt to contact" his son—and this Court has adopted that claim as fact.

This is not a motion asking for sympathy. This is a motion asking this Court to read its own record—to examine documents already admitted, already filed, already part of

the case—and to recognize that the January 26, 2026 Opinion rests on factual findings the record proves false.

III. LEGAL STANDARD

Under RAP 12.4, reconsideration is appropriate when there is: (1) manifest error of law or fact; (2) conflict with published decisions; or (3) significant questions of law. In *re Marriage of Keck*, 108 Wn. App. 307, 310 (2001). This motion presents all three grounds.

A. Standard of Review for Summary Judgment Appeals

This appeal arises from summary judgment. The applicable standard requires this Court to view all facts and reasonable inferences in the light most favorable to the non-moving party. *Vallandigham v. Clover Park Sch. Dist. No. 400*, 154 Wn.2d 16, 26 (2005). The appellate court does not weigh evidence, assess credibility, or resolve factual disputes. If genuine issues of material fact exist, remand is required. CR 56(c).

The moving party bears the burden of demonstrating the absence of any genuine issue of material fact. *Young v. Key Pharms., Inc.*, 112 Wn.2d 216, 225 (1989). The non-moving party's evidence must be presumed true, and all reasonable inferences drawn in that party's favor. Only when reasonable minds could reach but one conclusion is summary judgment appropriate.

The question before this Court was not "Did Bennett contact T.B.?" The question was "Could reasonable minds differ on whether Bennett attempted to contact T.B.?" If the answer is yes, summary judgment was improper and remand is required.

B. RAP 1.2 — Liberal Interpretation to Promote Justice

RAP 1.2(a) provides that the Rules of Appellate Procedure "will be liberally interpreted to promote justice and facilitate the decision of cases on the merits." RAP 1.2(b) authorizes this Court to "waive or alter the provisions of any of these rules in order to serve the ends of justice."

These provisions require symmetrical application. Rules cannot be strictly enforced against one party while liberally waived for another. Yet that is precisely what occurred here.

IV. ARGUMENT

A. BOTH COURTS INVERTED THE SUMMARY JUDGMENT STANDARD

On summary judgment, the moving party bears the burden of demonstrating the absence of any genuine issue of material fact. *Young v. Key Pharms., Inc.*, 112 Wn.2d 216, 225 (1989). The court must view all facts and reasonable inferences in the light most favorable to the non-moving party. *Vallandigham*, 154 Wn.2d at 26. The non-moving party's evidence is presumed true. If reasonable minds could differ, summary judgment must be denied.

Both the Superior Court and this Court inverted this standard. They viewed facts in the light most favorable to the moving party. They presumed the moving party's evidence true. They resolved factual disputes in the

moving party's favor. The standard was not merely misapplied—it was reversed.

1. What the Standard Required

Under the correct standard, the courts were required to:

- Presume Appellant's evidence TRUE
- View all facts in Appellant's FAVOR
- Draw all reasonable inferences AGAINST the moving party
- Deny summary judgment if reasonable minds COULD DIFFER
- Place the burden on the MOVING PARTY to prove no dispute exists

2. What the Courts Actually Did

Instead, the courts:

- Presumed Respondent's declaration TRUE despite contradicting evidence
- Viewed all facts in Respondent's FAVOR
- Drew all inferences FOR the moving party
- Granted summary judgment despite obvious factual disputes
- Placed the burden on Appellant to DISPROVE the narrative

3. The Evidence the Courts Should Have Credited

Under the correct standard, the courts were required to presume the following evidence true:

- Exhibit A: Facebook messages documenting phone calls in 2010-2011, mental health discussions in 2012, ongoing communications through 2019
- June 12, 2011 Video: In-person visit filmed by Respondent herself, showing T.B. calling a toy the "daddy one"
- Read-to-Me-Daddy and Angel Tree: Recordings and gifts sent during 2012-2015 incarceration, acknowledged by Respondent
- 2013 Court Order: Snohomish County finding that contact was "in the best interest of the child"
- Respondent's own admission in Exhibit A: "I never told [T.B.] you wanted to see him"

Instead, the courts credited Respondent's September 2023 declaration stating "no attempt to contact"—a declaration contradicted by Respondent's own video, Respondent's own messages, and a court order Respondent agreed to.

4. This Is Not Error—It Is Inversion

The Superior Court accepted Respondent's declaration as conclusive despite Exhibit A—filed seven months earlier—documenting the very contact the declaration denied. The court did not view facts in Appellant's favor. It viewed them in Respondent's favor. It did not presume Appellant's evidence true. It ignored that evidence entirely.

This Court compounded the error. The Opinion adopts Respondent's "no contact" narrative as established fact while Exhibit A, admitted to the appellate record on December 8, 2025, proves contact occurred. The Opinion does not acknowledge this evidence. It does not explain how "no contact" can coexist with documented phone calls, an in-person visit filmed by Respondent, and recordings

Respondent admitted receiving. It simply adopts Respondent's version.

This is not the light most favorable to the non-moving party. This is the light most favorable to the moving party. The standard was inverted.

5. The Consequence: Judgment Without Trial

Appellant does not ask this Court to believe his version over Respondent's. Appellant asks this Court to recognize that competing versions exist—and that when they do, summary judgment is improper. The Superior Court chose Respondent's version. This Court affirmed that choice. Neither court acknowledged the dispute. Both resolved it in the moving party's favor.

That is not summary judgment. That is judgment on the merits without trial. It is the function of a jury, not a court ruling on CR 56. The Opinion constitutes manifest error because it performed the wrong analysis entirely.

B. THE COURT APPLIED ASYMMETRIC EVIDENTIARY STANDARDS

RAP 1.2(a) mandates liberal interpretation "to promote justice and facilitate the decision of cases on the merits." This Court applied the rules asymmetrically—strictly against Appellant, liberally for Respondent.

1. Appellant Was Penalized for Procedural Deficiencies

The Opinion faults Appellant for "failure to perfect the record" due to missing transcripts. Yet Appellant provided verbatim excerpts from the record with precise citations

to their location. Appellant is indigent. This Court's own Commissioners denied transcript funding in violation of this Court's published precedent in *Bennett v. Manning*, No. 84951-4-I (Apr. 17, 2023). Appellant cannot be penalized for lacking documents this Court refused to provide.

2. Respondent Faced No Consequences for Non-Compliance

Respondent, by contrast, offered only conclusory declarations unsupported by documentation. When ordered to respond to Appellant's Motion to Supplement by December 1, 2025, Respondent filed nothing. When Appellant documented the default, this Court never ruled on CR 8(d). When the Opinion issued, it adopted Respondent's narrative as though no default had occurred.

RAP 18.9(a) authorizes sanctions against parties who "fail to comply with these rules." Respondent ignored a mandatory court order. This Court has not addressed that failure while simultaneously penalizing Appellant for procedural deficiencies he could not remedy due to indigency.

RAP 1.2(a) cannot mean strict enforcement against pro se indigent appellants and liberal accommodation for represented respondents who ignore mandatory court orders. That is not justice. That is prejudice.

C. THE COURT GRANTED APPELLANT'S MOTION, THEN IGNORED THE EVIDENCE

The procedural sequence is undisputed:

1. November 13, 2025: Appellant filed Motion to Supplement Record (RAP 9.11(a))
2. November 24, 2025: Court ordered Respondent "SHALL file response by December 1, 2025"
3. December 1, 2025: Deadline passed. Respondent filed nothing.
4. December 6, 2025: Appellant filed Notice of Non-Compliance citing CR 8(d)
5. December 8, 2025: Court granted Motion to Supplement. Exhibits A and B admitted.
6. January 26, 2026: Opinion issued adopting Respondent's "no contact" narrative

The Motion to Supplement specifically identified the evidence and its relevance. It documented that Exhibit A contained communications proving contact occurred. It cited Manning's own messages arranging phone calls, reporting T.B.'s reactions, and acknowledging receipt of materials during incarceration. It referenced her admission: "I never told [T.B.] you wanted to see him."

The Court found this evidence worthy of admission. It granted the motion. The evidence entered the appellate record. Yet the Opinion reads as though none of this occurred. It adopts the "no contact" narrative that the admitted evidence disproves. It does not acknowledge Exhibit A. It does not address the contradiction between Manning's declaration and her own contemporaneous statements.

Respondent was ordered to respond. Respondent chose silence. Under CR 8(d), that silence constitutes admission of the matters raised. Yet the Court never ruled on the CR 8(d) motion. It never addressed the default. It simply

proceeded to judgment as though Respondent had contested the evidence—when Respondent had not.

If evidence was worthy of admission, it was worthy of consideration. If Respondent's silence triggered CR 8(d), the matters raised were deemed admitted. The Opinion accounts for neither. This is not adjudication. This is procedural laundering of a false narrative.

D. THE "NO CONTACT" FINDING IS A BINARY FACTUAL IMPOSSIBILITY

The Opinion states that "from 2008 to 2019, Bennett did not attempt to contact T.B." The admitted evidence establishes the opposite.

The Timeline the Record Establishes:

2010-2011: Active Phone Contact and In-Person Visitation.

In November 2010, Manning established "set times" for Bennett to call T.B. On March 27, 2011, Manning reported T.B. had a "big grin on his face" after a phone call with his father.

On June 12, 2011, Appellant visited T.B. in person at Manning's residence. This visit was pre-approved by Washington Department of Corrections CCO Jeff Yancey, with a travel pass from Yakima County to King County. The visit was filmed by Respondent Manning herself. In the video, T.B. picks up two toy cars, identifies one as the "daddy one," and states, "I can play with this daddy."

Manning was not merely aware of this contact. She documented it. She filmed a three-year-old child recognizing his father.

2012: Engagement in T.B.'s Medical Care.

The parties actively discussed T.B.'s "Severe Reactive Attachment Disorder" diagnosis and his entry into outpatient psychotherapy. Appellant was engaged in his son's treatment decisions.

2012-2015: Incarceration—Continued Efforts, Denied Access.

During incarceration in Washington State, Appellant:

- Participated in Read-to-Me-Daddy, sending audio and video recordings to T.B.
- Sent gifts through Angel Tree
- Maintained phone contact with Manning
- Asked repeatedly to speak with T.B.

Manning acknowledged receiving these materials but refused to allow direct contact with T.B. In her own words from Exhibit A: "I never told [T.B.] you wanted to see him. I thought it was better that way."

A father who sends recordings of himself reading to his child has not abandoned that child. What happened during 2012-2015 was interference—the very tort Appellant seeks to litigate.

2013: Court Found Contact in Child's Best Interest.

In 2013, the Snohomish County Superior Court entered an Agreement and Order for Communication and Contact in T.B.'s adoption proceeding. The court found, pursuant to

Section 3.1, that "the agreement for communication/contact set forth above is in the best interest of the child adoptee." The agreement, drafted by Manning's attorney (Law Offices of Mark M. Demaray), provided for:

- Up to eight personal visits per year (Section 2.2)
- Progress reports up to four times per year (Section 2.1)
- Medical information sharing (Section 2.3)
- Ongoing contact information exchange (Section 2.4)

Manning agreed to these terms. A judge approved them. A court found that Appellant's relationship with T.B. was beneficial to the child. Yet Manning later declared under penalty of perjury that Appellant made "no attempt to contact" T.B.—and this Court adopted that declaration as fact.

2015-2019: Resumed Communications.

Following incarceration, Appellant resumed direct communications. The record documents ongoing discussions about T.B. Appellant expressed feeling betrayed over "false promises of a visiting plan."

2017: Active Concealment.

In 2017, Manning babysat Appellant's younger son, A.B., while actively concealing A.B.'s identity from T.B. Manning prevented the half-brothers from knowing of each other's existence—demonstrating ongoing deliberate interference.

The Discrepancy Cannot Be Reconciled

Manning's September 2023 declaration states Appellant made "no attempt to contact T.B. from 2008 until June 23,

2019." Manning's own contemporaneous communications prove otherwise. Her own video proves otherwise. A court order she agreed to proves otherwise. Her own admissions in Exhibit A prove otherwise.

This is not a credibility contest requiring jury resolution. This is a binary factual contradiction. The declaration is demonstrably false. The Opinion adopts it anyway.

E. COUNSEL ADVANCED THE FALSE NARRATIVE DESPITE ACTUAL KNOWLEDGE

Respondent's counsel, Nancy Ann Gass of O.W. Hollowell & Associates, possessed evidence disproving Manning's declaration and proceeded anyway.

1. Counsel Had Actual Knowledge

Exhibit A was filed in the trial court on November 16, 2023. On February 1, 2024, Appellant provided counsel with:

- Video of the June 12, 2011 visit, filmed by Manning
- Photographs from the same visit
- Copies of the Facebook messages comprising Exhibit A

From February 1, 2024 forward—nearly five months before summary judgment—counsel possessed video evidence of a father-son visit that her client would later deny ever occurred.

Ms. Gass is the sole owner of O.W. Hollowell & Associates, the same firm involved in the 2008 proceeding. There can be no claim of institutional ignorance.

2. Counsel Took No Remedial Measures

RPC 3.3(a)(3) requires an attorney who "has offered material evidence and who comes to know of its falsity" to "take reasonable remedial measures, including, if necessary, disclosure to the tribunal."

Counsel offered Manning's declaration. Counsel received evidence proving it false. Counsel took no remedial measures. Counsel proceeded to summary judgment relying on the false declaration.

3. Counsel Took Mutually Exclusive Positions

On June 21, 2024, counsel told the Washington Supreme Court that civil case evidence was "NOT RELEVANT" to the DVPO appeal (Case No. 102,950-1, page 4, lines 12-18).

Seven days later, on June 28, 2024, counsel told the King County Superior Court that those same civil issues had been "adjudicated" in the DVPO and the civil case was improper "re-litigation."

Both statements cannot be true. If civil issues were "not relevant" to the DVPO, they were not "adjudicated" there. Counsel's June 21 admission defeats the collateral estoppel defense she advanced on June 28. This Court adopted the June 28 position without addressing the June 21 admission.

F. CR 8(d): MANDATORY ADMISSIONS IGNORED

On November 24, 2025, this Court ordered Respondent "SHALL file response by December 1, 2025." Respondent filed nothing.

On December 6, 2025, Appellant filed a Notice of Non-Compliance citing CR 8(d), which provides that matters are "deemed admitted when not denied." This Court never ruled on the Notice.

If CR 8(d) applies, Manning has admitted:

- The "no contact" narrative is false
- Appellant maintained contact with T.B.
- Manning acknowledged receiving Read-to-Me-Daddy recordings and Angel Tree gifts
- Manning refused to allow direct contact despite Appellant's requests
- Manning admitted: "I never told [T.B.] you wanted to see him"

Summary judgment cannot stand in the face of these admissions. This Court must either apply CR 8(d) or explain why a mandatory rule does not apply when a pro se litigant invokes it against a represented party who ignores a court order.

G. CONSTITUTIONAL VIOLATION: THE INDIGENCY TRAP

On April 17, 2023, this Court held in *Bennett v. Manning*, No. 84951-4-I, that under RAP 15.2(d), when indigency status is approved, the commissioner must forward that

determination to the Supreme Court for waiver consideration.

Appellant has approved indigency status. Commissioners Koh and Kanazawa denied transcript funding without forwarding the determination—violating this Court's published precedent.

The Opinion then penalizes Appellant for "failure to perfect the record." This creates an unconstitutional catch-22: deny the indigent appellant the transcript, then fault him for not having it. *Griffin v. Illinois*, 351 U.S. 12 (1956), prohibits conditioning appellate review on ability to pay.

This Court must address whether *Bennett v. Manning*, No. 84951-4-I remains good law. If it does, the Commissioners violated it, and Appellant is entitled to his transcript. If it has been overruled, this Court should say so explicitly.

H. THE 2008 "ABANDONMENT" FINDING WAS FRAUDULENT

The false narrative began in 2008. Exhibit D, the March 5, 2008 Temporary Custody Agreement, states custody would remain with Manning "until such time we either move to WA or decide to TAKE CUSTODY BACK." This was temporary. The parents retained reclaim rights.

The December 5, 2008 Findings of Fact claim Appellant "ABANDONED" T.B. as of March 5, 2008—the day he signed an agreement reserving reclaim rights. The same order requests a restraining order because both parents "THREATEN TO REMOVE CHILD." A parent cannot simultaneously abandon and threaten to remove a child.

Exhibit E, Manning's November 26, 2008 Declaration, admits Appellant was calling T.B. "couple times per week." Parents calling multiple times weekly have not abandoned their child. RCW 26.27.021(1) defines "abandoned" as "left without provision for reasonable and necessary care." The definition was not met.

The default was obtained while Appellant sat in a Colorado jail, unable to attend after Manning contacted his probation officer. A judgment obtained through fraud may be challenged at any time. The fraud has infected every subsequent proceeding.

V. RELIEF REQUESTED

Appellant respectfully requests that this Court:

1. Grant this Motion for Reconsideration;
2. Vacate the January 26, 2026 Opinion;
3. Reverse the Superior Court's grant of summary judgment;
4. Remand for trial on all claims, with instructions that: (a) collateral estoppel does not bar claims counsel admitted were "not relevant" to the DVPO; (b) the "no contact" finding is not established fact but a disputed issue for jury determination; (c) on remand, the trial court must apply the summary judgment standard correctly, viewing facts in the non-moving party's favor;
5. Rule on Appellant's Motion for Reconsideration of Commissioners' Rulings (Feb. 12, 2025) and order the transcript at state expense;

6. Rule on Appellant's Notice of Non-Compliance (Dec. 6, 2025) and apply CR 8(d);
7. In the alternative, conduct an evidentiary hearing on the newly discovered evidence;
8. Consider sanctions under RAP 18.9(a) for Respondent's failure to comply with this Court's November 24, 2025 order;
9. Refer counsel's conduct to the Washington State Bar Association;
10. Award such other relief as this Court deems just.

VI. CONCLUSION

This case presents a collision between narrative and evidence—and both courts chose the narrative.

The summary judgment standard required the courts to view facts in Appellant's favor, presume his evidence true, and deny summary judgment if reasonable minds could differ. Both courts did the opposite. They viewed facts in Respondent's favor. They presumed her declaration true despite contradicting evidence. They granted summary judgment despite obvious factual disputes. The standard was not merely misapplied. It was inverted.

The narrative says abandonment. The evidence says interference. The narrative says eleven years of silence. The evidence shows phone calls, visits, recordings, gifts, and a court order finding contact beneficial to the child. The narrative comes from a declaration. The evidence comes from the declarant's own video, her own messages,

her own acknowledgments, and a court order she agreed to.

This Court admitted the evidence on December 8, 2025. Six weeks later, it issued an Opinion as though that evidence did not exist. Respondent was ordered to respond. She filed nothing. This Court never ruled on the resulting default. Instead, it adopted her narrative while penalizing Appellant for lacking transcripts this Court refused to fund.

RAP 1.2(a) requires liberal interpretation to promote justice and decide cases on the merits. Justice was not served by inverting the summary judgment standard. The merits were not reached when summary judgment cut off discovery, prevented depositions, and denied Appellant the trial the disputed facts require.

On June 12, 2011, Zackariah Bennett traveled with a DOC-approved pass to visit his son. Melvina Manning filmed that visit. In the video, T.B. calls a toy the "daddy one." In 2013, a court found that contact was in T.B.'s best interest. Yet in 2023, Manning declared under penalty of perjury that Bennett made "no attempt to contact" his son. Counsel received the video on February 1, 2024. Five months later, counsel used the declaration to obtain summary judgment. The Superior Court viewed facts in the moving party's favor and granted the motion. This Court applied the same inverted standard and affirmed.

The record proves the declaration false. Manning's own video proves it false. Manning's own words prove it false. A court order Manning agreed to proves it false. Counsel knew it was false and proceeded anyway. Respondent was ordered to respond and chose silence. This Court granted Appellant's motion, admitted the evidence, and issued an Opinion as though none of it existed.

Appellant does not ask this Court to believe his version over Respondent's. He asks this Court to recognize that competing versions exist—and that when they do, summary judgment is improper and trial is required. That is what the standard demands. That is what justice requires.

Three questions. Each documented. Each independently dispositive. Each demanding response.

Justice requires reconsideration.

DATED this 7th day of February, 2026.

A handwritten signature in black ink, appearing to read 'Zackariah Bennett', is written over a horizontal line.

ZACKARIAH BENNETT, Pro Se

Appellant

4131 words

CERTIFICATE OF SERVICE

I hereby certify that on the 7th day of February, 2026, I caused to be served a true and correct copy of the foregoing MOTION FOR RECONSIDERATION upon the following:

Nancy Ann Gass

O.W. Hollowell & Associates

☒ By electronic filing through the Court's portal

☐ By email to: [counsel's email]

☐ By U.S. Mail, postage prepaid

A handwritten signature in black ink, appearing to read 'Zackariah Bennett', is written over a horizontal dashed line.

ZACKARIAH BENNETT